

Superior Court of the State of California  
County of Orange  
TENTATIVE RULINGS FOR C61  
**HON. JENNIFER M. MCCARTNEY**

**Date: 08/19/2026**

**Courtroom Rules and Notices**

**The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.**

**Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the court's afternoon calendar the day of the hearing.**

**Submitting on tentative rulings:** If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

**Non-appearances:** If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

| # | Case Name                                                        | Tentative                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
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|   | 30-2025-01525819<br>Woodbury Place<br>Apartments LLC vs.<br>Pugh | <p>The Court has read and considered the Defendant's Motion to Quash Service (ROA 59) and Plaintiff's Opposition (ROA 67).</p> <p>The Court takes Judicial Notice of the Proof of Service of Summons (ROA 9) and Proof of Service of Summons &amp; Complaint-Unnamed Occupants (ROA 11).</p> <p>California Evidence Code Section 647 establishes a rebuttable presumption that a proof of service signed by a registered process server is true. It shifts the burden of proving lack of service to the defendant, rather than requiring the plaintiff to prove proper service. The Defendants failed to provide evidence to rebut the presumption established under Evidence Code section 647.</p> <p>According to the Proof of Service of Summons (ROA 9), registered process server Marcos Mejia (Orange County #6661) personally served Terrance Pugh with the summons, complaint, and other documents on November 17, 2025, at 9:09 PM. The only evidence the Defendant submitted in support of its motion to quash service is a statement that the Defendant was not personally served. The Defendant's self-serving statements alone do not rebut the presumption under Evidence Code section 647.</p> |

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|  |                                                                                                    | <p>The Court DENIES the Defendant's Motion to Quash Service.</p> <p>The Court orders the Defendant to file a responsive pleading within 5 calendar days.</p> <p>The Plaintiff is ordered to provide notice of the Court's ruling.</p>                                                                                    |
|  | <p>30-2026-01583425<br/>Adland Apartments,<br/>LLC, as to undivided<br/>77% interest vs. Reyes</p> | <p>The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 12) and the Complaint (ROA 2).</p> <p>The Court OVERRULES the Demurrer.</p> <p>The Court orders the Defendant to file an Answer within 5 calendar days.</p> <p>The Plaintiff is ordered to provide notice of the Court's ruling.</p> |
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